

Mohd Qayyum v. Purvanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 1 February 2023 · Writ - C No. 2622 of 2023 · **Petition disposed after theft assessment withdrawn**

HEADNOTE

Writ against a theft assessment disposed of once the licensee withdrew the order dated 19.09.2022 and undertook to pass a fresh order after hearing. The Court left that fresh order to be made under the procedure prescribed by the Electricity Supply Code, 2005, without deciding the theft allegation.

FACTUAL SUMMARY

Mohd Qayyum petitioned the Allahabad High Court against Purvanchal Vidyut Vitran Nigam Ltd. and two others, challenging an assessment order dated 19 September 2022 made by the second respondent in a case of alleged theft of electricity. When the writ was taken up on 25 January 2023, counsel for the licensee sought time to obtain instructions, and the petition was directed to be listed as fresh on 1 February 2023. On that date, counsel stated that the impugned assessment order had been withdrawn.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::procedure

Fresh order after withdrawal of a theft assessment

HOLDING

Where the licensee states that an assessment order passed in a theft case has been withdrawn and that a fresh order will be passed after hearing the consumer, the writ is disposed of with liberty to the respondents to pass that fresh order after following the procedure prescribed under the Electricity Supply Code, 2005. ¶ 1

FLAG Order cites the Electricity Supply Code, 2005 only as the procedure to be followed; no clause number is given.

PRINCIPLE TAGS

fresh-order-follows-supply-code-procedure

The Court did not construe any numbered clause. On the licensee's statement that the assessment of 19.09.2022 stood withdrawn, it disposed of the writ and left the respondents at liberty to pass a fresh order only after hearing the petitioner and following the procedure prescribed under the Electricity Supply Code, 2005. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THEFT OF ELECTRICITY WAS MADE OUT, AND WHAT ASSESSMENT, IF ANY, MAY BE MADE AFRESH

The impugned order of 19.09.2022 was withdrawn. The Court did not examine the allegation or the quantum of any future assessment. ¶ 1